

SPEAKER'S CORNER From *The Practice* — March/April 2025

Why American Lawyers Must Fight Democratic Backsliding

A call for collective action

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March/April 2025

Lawyers Between Democracy and Authoritarianism

Introducing the March/April 2025 Issue

Why Study Lawyers Amidst Democratic Decline

How Brazilian Lawyers Engage with the State

How Chinese Lawyers Engage with the State

How Egyptian Lawyers Engage with the State

How Iranian Lawyers Engage with the State

Why American Lawyers Must Fight Democratic Backsliding

David B. Wilkins, faculty director of the Center on the Legal Profession, sat down with Scott L. Cummings, the Robert Henigson Professor of Legal Ethics at the UCLA School of Law, to talk about democratic backsliding in the United States and what the legal profession can do.

David B. Wilkins: Why study lawyers in democratic backsliding?

Scott L. Cummings: What we have learned from studying democratic backsliding and autocratization over the last 20 to 25 years is that this new wave of autocrats—like Victor Orbán in Hungary, for example—have figured out how to effectively consolidate power using law. They call it “rule by law,” not by force. The basic strategy in the “autocratic legal playbook” is to use ostensibly legal means to make legal changes that are designed to target key democratic institutions that are supposed to check executive power. This is the new playbook—it centers law. It relies on law in order to be effective. Because of that, lawyers are the key ingredient to this new autocratic legalism because you need lawyers to design, draft, and defend the laws that dismantle these democratic institutions. That’s why it’s not a coincidence that Victor Orbán was trained as a lawyer and the key parliamentarians that were involved in the initial constitutional revolution that broke down the rule of law institutions were trained at elite law schools in Hungary. It’s no coincidence that Project 2025 in the United States was drafted primarily by lawyers or that the vice president is an elite-trained lawyer. This is a project that depends on lawyers to be effective.

Wilkins: That leads me to ask about the method more. There’s a key distinction you make in your work between what you might call the slow road to backsliding and the fast track to backsliding. Could you say a little bit about the distinction between those two pathways and how lawyers play a role?

Cummings: I derive this framework of the slow road and fast track from political science on democratic backsliding. Both of these pathways highlight how lawyers play key roles authoring laws that move countries away from democratic stability. The fast-track idea is about identifying an emergency to invoke extraconstitutional authority on the part of the executive to suspend the normal constitutional framework in order to stay in power. The best recent example of this was the effort by Jair Bolsonaro in the 2022 Brazilian election to claim voter fraud as an emergency foundation for suspending the legitimate results of the election, which he lost, to stay

